

		"Generally, an attorney has a right to end the attorney-client relationship, but when litigation remains pending, the court has control over such termination, in part to ensure that the client is not harmed—for example, by abandonment of counsel on the eve of trial." (<i>Flake v. Neumiller & Beardslee</i> (2017) 9 Cal.App.5th 223, 281.) This matter is currently set for trial on 12-08-26, which presents the possibility the client may be harmed if the motion is granted. However, "[t]he determination whether to grant or deny a motion to withdraw as counsel lies within the sound discretion of the trial court" (<i>Manfredi & Levine v. Superior Court</i> (1998) 66 Cal.App.4th 1128, 1133) and the court exercises its discretion to grant the motion. The trial date, however, will be CONTINUED to March 2, 2027, at 9:00 a.m. in CMMC. The court will sign the Proposed Order. Moving counsel is ORDERED to give notice to all parties to this action and file proof of service of the court's order as entered. Withdrawal will be effective upon filing of proof of service of the order.
3	Smith - Probate (2023-01344389)	Motion to Compel Further Responses to Request for Admissions
4	Mathews - Trust (2025-01502968)	Motion to Compel Further Responses to Special Interrogatories James C. Mathews, Jr.'s Motion to Compel William Smithson Mathews to Serve Further Responses to Special Interrogatories, Set Two (ROA 43) is DENIED as moot. The accompanying request for sanctions is also DENIED as the moving party failed to comply with Code of Civil Procedure section 2016.040, which mandates that "[a] meet and confer declaration in support of a motion shall state facts

		showing a reasonable and good faith attempt, either <i>in person, by telephone, or by videoconference</i>, to informally resolve each issue presented by the motion.” (Emphasis added.) The declaration submitted in support of the motion does not reflect any “meet and confer” attempt made in person, by telephone, or by videoconference. Moving party is directed to give notice.
5	Johnson - Trust (2024-01427023)	Motion to Quash Discovery Subpoena (2) Petitioner Tricia M. Johnson’s Motion to Quash Deposition Subpoena Served on the Kaiser Foundation (Billing), etc. (ROA 102) is GRANTED. Petitioner Tricia M. Johnson’s Motion to Quash Deposition Subpoena Served on the Kaiser Foundation (Radiology), etc. (ROA 103) is GRANTED. This proceeding arises out of a petition filed seeking instructions regarding the Patricia J. Johnson Revocable Trust dated February 11, 2019 (Trust). According to the petition, the settlor of the Trust, Patricia J. Johnson, passed away on January 8, 2023. (ROA 1 at 5:16-17.) Thereafter, her daughter Amy Lynn Bromley became trustee. Pursuant to the initial terms of the Trust, Amy was to receive 50% of the Trust assets and her brothers Steven Edward Johnson and Russell Phillip Johnson would receive 25% each. (ROA 2 at 3:18-27.) Under the terms of an October 2019 document entitled “Chattel Schedule,” Amy allegedly as to receive 100% of the real property (the primary Trust asset), while Steven and Russell would receive “Proceeds of Unsecured Promissory Note in the Sum of \$500,000 from Amy.” (ROA 2 at 4:23-5:14.) In September 2024, Petitioner Tricia M. Johnson, Steven’s wife, filed a petition (Petition) seeking, in part, to void the Chattel Schedule amendment to the Trust on the grounds of undue influence and/or diminished capacity. Steven had been